



THE REPUBLIC OF UGANDA

IN THE MATTER OF THE LAND ACT CAP 236.

AND

IN THE MATTER OF THE REGISTRATION OF TITLES ACT CAP 240

AND

**IN THE MATTER OF SALE OF LAND COMPRISED
AT LYAMUTWE WAKISO DISTRICT, BUSIRO BLOCK 336 PLOT 445
MEASURING 1.002 HECTARES.**

LAND SALE AGREEMENT

THIS AGREEMENT is made this 27th March, 2024

BETWEEN

SAMUEL MULIMBA of NIN CF8503210K8HDF a resident of **KAGUGUBE, KAMPALA DISTRICT** (Hereinafter after called "**THE VENDOR**" which expression shall where the context so admits include their legal assignees, appointees and successors in title) on one part

AND

JOHN MUTAMBUZE of NIN CM510321055P9F and a resident of **WAKISEKA, KAMPALA District**. (Hereinafter after called "**THE PURCHASER**") which expression shall where the context so admits include her legal assignees, appointees and successors in title) on the other part.

AND WHEREAS the PURCHASER, being desirous of purchasing the said land, has carried out all the necessary due diligence for establishing the authenticity of the title of the **VENDOR** to the said land through investigations and by the physical inspecting the land, among other things, and by signing this Agreement the **PURCHASER** hereby affirms to completion of all the requisites

investigations and inspections as proof of the proper conduct of due diligence to the **PURCHASER'S** full satisfaction and hereby the commits himself as follows:

- a) Investigations, Inspections of land and Reviews. The **PURCHASER** has at the Purchaser's expense finally completed the investigations, inspections of the said property/ land and has made all the necessary reviews of records pertaining to the land title of the **VENDOR** in relation to the situation on the ground and has accordingly made the following findings and conclusions about the said land.

AND WHEREAS the VENDOR, is desirous of selling the said land and the **PURCHASER** having duly negotiated the terms as contained herein with the vendor is willing to purchase the land, from the vendor subject to the terms and conditions herein;

NOW THIS AGREEMENT WITNESSTH AS FOLLOWS;

1. RECITALS

- a) The vendor herein is the registered proprietor of the **LAND AT LYAMUTWE BUSIRO IN WAKISO DISTRICT BLOCK 336 PLOT 445** measuring approximately 1.002 Hectares and she is desirous of selling off the same to the purchaser who is also willing to buy the same in that capacity.
- b) The parties hereto wish to record in writing the terms governing their relationship with each other with regard to this transaction.
- c) This agreement cancels and consolidates all earlier agreements written or oral for sale and purchase of the said land between the vendor and the purchaser.

2. PURCHASE PRICE AND MODE OF PAYMENT

- a) The purchase price agreed upon is by the parties herein is **UGX. 170,000,000/= (One hundred seventy million shillings)** as total consideration for the purchase of the piece of land mentioned herein above.

3. MODE OF PAYMENT

- b) The purchaser shall on execution of this agreement pay **UGX. 170,000,000/= (One hundred seventy million shillings)** as purchase price for the land mentioned herein to the vendor and by signing this agreement, she acknowledges receipt of the same.
- c) That this amount is exclusive of stamp duty and the purchaser shall be responsible of any payment of stamp duty and any government fees payable with respect to

the transfer of the property into the purchaser's names but not into the vendor's names.

4. DUTIES OF THE VENDOR

By this agreement the **Vendor** undertakes as follows;

- a. That she has authority to sell the land herein sold and is not precluded from doing so by any person or authority.
- b. That the land herein sold is, free from any encumbrances and third party claims whatsoever **Provided** that if there shall arise any claim or anything that shall prevent the purchaser from acquiring good title to the land herein sold, the vendor shall fully indemnify the purchaser against any loss and damage suffered, by refunding the full purchase price herein paid plus other monies spent under this agreement.
- c. To deliver vacant possession of the land after the consideration has been paid in full.
- d. To furnish all documents relating to the transaction, to the **Purchaser** to enable the **Purchaser** transfer the land purchased into his name, after full payment.
- e. To introduce the **Purchaser** to the area L.C1 Executives as the new owner of the land herein sold and the **Purchaser** shall be responsible for any dues required by or payable to the said L.C1 Executives.
- f. To sign transfer forms in favor of the **Purchaser** upon execution of this agreement.

5. DUTIES OF THE PURCHASER

By this agreement the purchaser undertakes as follows;

- a. To pay the purchase price as agreed within this agreement.

6. DISPUTE RESOLUTION

- a. All disputes arising under this agreement shall be resolved through mediation within 7 days working from the date when the dispute arose.
- b. Where the parties fail to successfully resolve the dispute through mediation, the matter may be brought before the High Court of Uganda.

7. LAW APPLICABLE

This agreement shall be governed by the Laws of Uganda.

IN WITNESSS WHEREOF, the parties hereto have caused this Agreement to be signed in their respective names as of the day and year first above written.

SIGNED & DELIVERED by the said

.....

SAMUEL MULIMBA

(VENDOR)

SIGNED & RECEIVED by the said

.....

JOHN MUTAMBUZE

(PURCHASER)

In the presence of

.....

MWASA MUHAMMAD

(WITNESS)

.....

MAWANDA ISAAC

(WITNESS)

.....

KALUNGI IBRAHIM

(WITNESS)

.....

LUZZE ABDUL

(WITNESS)

.....

NINSIIMA MERCY

(ADVOCATE)